

Vintage at Hamilton Homeowners Association

Committee Structure & Charters — Proposal for Board Review

Prepared for the Board Review Meeting — July 7, 2026 · DRAFT v2 for discussion

1. Background & Governing Authority

The Bylaws (Article X, Section 1) provide that the Board of Trustees shall appoint committees as deemed appropriate in carrying out its powers and duties, and that all committee members must be Members of the Association. Two committees are separately mandated by the governing documents: the Judiciary Committee (Bylaws Article XV — the Association's required alternative dispute resolution body) and the Transition Committee (Bylaws Article XVI — three resident owners, elected by the owners, to close out the developer's warranty and construction obligations).

This proposal (a) adopts a charter for the existing Finance Committee, anchoring it to the Treasurer; (b) establishes a new Shared Spaces Committee; (c) adopts a charter for the existing Architectural Control Committee; and (d) summarizes the roles of the Judiciary and Transition Committees so members can be allocated.

Golden source: once adopted by Board resolution, these charters constitute the Association's Committee Handbook — a companion to the Blue Book and the single reference for committee queries, published on the community portal. Codification into the Bylaws can follow via the amendment process (the Board may amend with notice and a rejection-ballot procedure under N.J.S.A. 45:22A-46(d); any amendment takes effect only upon county recording).

A point of leverage worth noting: Bylaws Article VIII requires the Treasurer to cause an annual audit of the Association's books by an independent certified public accountant, and to prepare an annual budget and statement of income and expenditures delivered to every Member. Although New Jersey law does not itself mandate an annual audit for owner-controlled associations, our Bylaws do — and the management company, as the Association's agent, is obliged to support it. The Association is the client.

2. Charter — Finance Committee

Purpose

To support the Treasurer in discharging the financial duties assigned by Bylaws Article VIII, to provide independent, continuous oversight of the Association's finances and of the managing agent's financial performance, and to improve financial transparency to the membership.

Authority & Reporting

- Established by Board resolution under Bylaws Article X, Section 1, as an advisory committee of the Board. It reports through the Treasurer, who serves as chair (or as Board liaison if the Board prefers an appointed chair).
- The Committee has no authority to spend, contract, or direct vendors. All Association expenditures require Board approval.
- The Committee has authorized read access to the Association's financial records, including: monthly financial statements and general ledger, bank and reserve account statements, budget-versus-actual reports, accounts payable and invoice registers, aggregate delinquency aging (member-level detail only as necessary and treated as confidential), insurance policies, vendor contracts, and all reports produced by the managing agent.

- Companion Board resolution (recommended): the Board directs the managing agent to deliver a standing monthly reporting package to the Committee by the 15th of each month. The managing agent works for the Association; committee access is at the client's direction, not the agent's discretion.

Duties

- **Monthly review.** Review financial statements and reconciliations; report material variances, discrepancies, or concerns to the Treasurer and Board in a short written monthly report.
- **Budget.** Support the Treasurer in preparing the annual budget and the annual statement of income and expenditures required by Bylaws Article VIII.
- **Annual audit.** Oversee the Bylaws-mandated annual independent CPA audit: recommend the engagement, review findings, and confirm distribution.
- **Reserves.** Track compliance with New Jersey's reserve study and funding law (P.L.2023 c.214, as amended by P.L.2025 c.132): reserve study update every 5 years, funding at 100% of a study plan or the 85% election with the required prominent annual owner notice.
- **Tax & filings.** Confirm timely filings: federal return (Form 1120-H election evaluated annually), NJ CBT-100, 1099-NECs to unincorporated vendors, and the NJ nonprofit annual report.
- **Insurance.** Review renewals annually for adequacy, including fidelity/crime coverage that must extend to the managing agent's personnel handling Association funds.
- **Internal controls.** Review controls annually: Association-titled bank accounts (no commingling), authorized signatories, segregation of duties at the managing agent.
- **Vendor economics.** Provide financial evaluation of vendor bids, RFPs, and contract renewals for the Board.
- **Delinquencies.** Monitor aggregate delinquency trends. Member-specific collection decisions remain with the Board and counsel.

Composition, Conduct & Meetings

- Three to five Members in good standing, appointed by the Board for one-year renewable terms; finance, accounting, or audit backgrounds preferred.
- Conflict of interest: members must disclose any financial interest in a vendor or matter under review and recuse themselves.
- Confidentiality: non-public financial data and any member account information are confidential.
- Meets monthly; keeps minutes; takes no binding votes (recommendations only — binding decisions occur at open Board meetings per N.J.A.C. 5:26-8.12).

3. Charter — Shared Spaces Committee

Purpose

To act as the Board's eyes and hands on the Association's common property and association-maintained improvements — including, but not limited to, the clubhouse, pool area, pickleball court, the new utility area, shared greens, roads, and sidewalks — ensuring they are maintained to standard, that vendors deliver what their contracts require, and that capital needs surface early enough to plan and fund.

Authority & Reporting

- Established by Board resolution under Bylaws Article X, Section 1, as an advisory committee reporting to a designated Board liaison.
- No authority to spend or contract; may coordinate with vendors only within Board-approved scopes of work. Emergencies are reported immediately under the Association's emergency procedure.

Duties

- **Inspections.** Conduct documented quarterly inspections of all shared spaces, plus seasonal inspections (pre/post winter for roads and sidewalks; pool pre-opening and post-closing).
- **Asset register.** Maintain a register of common assets and their condition — including streets, retaining walls, detention basin outflows, lamp posts, mailboxes, and utility coverings — feeding the reserve study and 30-year funding plan required by P.L.2023 c.214.
- **Vendor oversight.** Monitor vendor performance against contract service levels — e.g., snow clearing at 2 inches and ice treatment at one-quarter inch per Declaration §5.04/§8.07, landscaping schedules, pool service — and report performance to the Board (and into the vendor scorecards in the community portal once live). Conduct biannual walk-throughs with the landscaping/tree contractors and managing agent.
- **Seasonal operations.** Coordinate pool opening/closing and the county health permit; maintain the clubhouse maintenance calendar.
- **Usage policies.** Recommend rules for amenity use (booking, guest, and hours policies) for Board adoption.
- **Capital projects.** Propose and evaluate improvement projects with preliminary cost estimates for Board and reserve planning.
- **Safety.** Conduct safety walkthroughs and report hazards (trip hazards, lighting, pool compliance) without delay.

Composition & Meetings

- Three to seven Members in good standing, appointed by the Board for one-year renewable terms; facilities, engineering, construction, or project-management experience valued.
- Meets monthly plus seasonal inspection sessions; keeps minutes; recommendations only.

Relationship to the Transition Committee

This committee is the natural successor to the Transition Committee. When the Transition Committee completes its work under Bylaws Article XVI, its records — inspection reports, punch lists, warranty registers, and the developer's structural plans and preventive maintenance documentation — transfer to the Shared Spaces Committee, which assumes ongoing condition oversight. Transition Committee members are natural candidates for this committee.

4. Charter — Architectural Control Committee

Purpose

To preserve the architectural, visual, and aesthetic harmony of the community (Declaration §3.03) by administering the review and approval process for additions, alterations, and improvements under Declaration §11.03 — fairly, consistently, in writing, and always within the deadlines the Declaration imposes.

Authority & Reporting

- Established by the Board under Bylaws Article X and Declaration §11.03. Decides owner applications for structural additions, alterations, and improvements — including satellite dishes, hot tubs, sheds, canopies, awnings, trellises, arbors, decks, patios, landscaping, hardscaping, and walls — and may approve, approve with conditions, or deny with written reasons.
- May impose a reasonable review fee and conditions as part of any approval (§11.03). Reports to the Board; recommends architectural standards to the Board for adoption.

- No spending or contracting authority. Enforcement (fines under §11.05) is a Board/Judiciary matter requiring prior notice and an ADR offer — the ARC refers, it does not fine.

Critical Duties — the 60-Day Clock

- **Acknowledge.** Issue a written, dated acknowledgment of receipt for every application, immediately. The 60-day period runs from receipt.
- **Decide within 60 days.** Declaration §11.03: failure to answer within 60 days constitutes automatic approval. The Committee maintains a dated application log with the deadline for every open item, reviewed at every meeting.
- **Decide in writing.** Every decision — approval, conditions, denial with reasons — is delivered to the owner in writing and retained.
- **Permits.** Municipal permit applications require prior written ARC approval; the owner must furnish a copy of the permit before work begins (§11.03).
- **Records.** Maintain ARC records per property (not per person), surviving ownership changes and available for resale disclosures.

Standing Duties

- **Standards library.** Maintain published architectural standards (approved colors, materials, pre-approved changes) and recommend updates to the Board; a pre-approved list allows fast-track handling of like-for-like repairs required to use materials of equivalent quality (§3.03).
- **Legal limits.** Apply the review consistent with law: reasonable disability adaptations may not be prohibited (FHA; §11.03); rooftop solar on owner-maintained roofs may be conditioned but not prohibited (N.J.S.A. 45:22A-48.2); FCC OTARD limits antenna/dish restrictions; U.S. flag display is federally protected.
- **Referrals.** Refer suspected violations to the Board/Judiciary process; do not self-enforce.

Composition & Meetings

- Three to five Members in good standing, appointed by the Board for one-year renewable terms; design, construction, or process-discipline backgrounds valued.
- A member must recuse from any application concerning their own Home or an immediate neighbor's.
- Meets monthly or as application volume requires; keeps a decision log and minutes.

5. Judiciary Committee — Roles & Responsibilities (Bylaws Article XV)

This committee is required by the Bylaws and is the Association's alternative dispute resolution (ADR) mechanism — which New Jersey law requires every association to make available, and which is a legal precondition to levying any fine. We do not currently have one; establishing it is a compliance item, not an optional improvement.

- **Role.** Hears disputes between Members, tenants, and/or the Board that are not within the Architectural Control Committee's jurisdiction.
- **Fixed procedure (Bylaws Art. XV).** Written complaint filed → copy to respondent within 7 days → respondent's written response within 14 days → informal resolution attempted → if unresolved, formal hearing on 14 days' notice → decision targeted within 24 hours of the hearing. Costs are common expenses.
- **Powers.** May issue cease-and-desist requests; provides interpretations of the governing documents when asked by a Member or the Board.

- **Composition guidance.** Three to five Members; because NJ law requires ADR to be administered by a neutral who is not an officer, board member, or party to the dispute, no sitting Trustee should serve. Odd number recommended; even-tempered, impartial members with mediation, legal, or HR backgrounds are ideal. Strict confidentiality.
- **Workload.** On-demand; low volume expected. Occasional hearings.

6. Transition Committee — Roles & Responsibilities (Bylaws Article XVI)

Also mandated — and unusually prescriptive. Note the seating mechanism before allocating names: this committee is not board-appointed.

- **Composition (fixed).** Exactly three resident Owners (not the Declarant), ELECTED BY THE OWNERS. Vacancies are filled by the resident-owner Board members within 30 days.
- **Mission.** Verify that the Declarant (Sharbell) has properly discharged its warranty and construction obligations for the Common Property and other Association-maintained improvements, and negotiate remedial measures before any release of liability.
- **Process (Bylaws Art. XVI).** For each portion the Declarant notices as complete: obtain an independent engineer's inspection report within 60 days; furnish it to the Declarant within 10 days; conduct joint inspections; negotiate remediation in good faith; recommend release terms to the Board. Township-bonded improvements are exempt; individual home warranties are excluded.
- **Consultants.** The Committee selects its own independent engineering and legal consultants, paid by the Association.
- **Related handover items.** Ensure receipt of the developer deliverables required by P.L.2023 c.214: structural plans (including field changes to load-bearing components) and the preventive maintenance document, plus warranties, as-builts, contracts, and developer-era audits of Association funds.
- **Duration.** Time-limited: the committee sunsets when releases are complete, handing its records to the Shared Spaces Committee.
- **Skills sought.** Construction, civil/structural engineering, contract negotiation, or legal backgrounds. Heaviest workload of the four committees while active.

7. Allocation Summary

Committee	Seats	Seated by	Reports to	Ideal skills	Est. time
Finance	3-5	Board appoints	Treasurer	Accounting, audit, finance	4-6 hrs/month
Shared Spaces	3-7	Board appoints	Board liaison	Facilities, engineering, project mgmt	4-8 hrs/month + seasonal
Architectural (ARC)	3-5	Board appoints	Board	Design, construction, process discipline	2-4 hrs/month + volume
Judiciary	3-5 (no sitting Trustees)	Board appoints	Board (procedural)	Mediation, legal, impartial temperament	On-demand
Transition	Exactly 3	ELECTED by Owners (Art. XVI)	Board	Construction, engineering, negotiation, legal	Heavy while active

8. Recommended Board Actions

- Adopt the Finance Committee charter (Section 2) and pass the companion resolution directing the managing agent to deliver the monthly reporting package to the Committee.
- Adopt the Shared Spaces Committee charter (Section 3) and name a Board liaison.
- Adopt the Architectural Control Committee charter (Section 4), superseding the managing agent's undated committee guidelines; direct that all pending ARC applications be logged with their 60-day deadlines immediately.
- Adopt the charters collectively as the Association's Committee Handbook (companion to the Blue Book), publish on the community portal, and task counsel with the Bylaws codification path. Add a Social Committee charter in the same format at a subsequent meeting.
- Establish the Judiciary Committee per Bylaws Article XV and appoint 3-5 members (no sitting Trustees) - required for ADR compliance and a precondition to any enforcement fines.
- Confirm transition status with counsel and, if the Final Transition Election (Bylaws Art. IV, Sec. 2) has occurred or is imminent, schedule the owner election of the three Transition Committee members per Article XVI.
- Request the managing agent confirm the status of the annual independent CPA audit required by Bylaws Article VIII, and the engagement letter for the current fiscal year.

Prepared with reference to the Vintage at Hamilton Public Offering Statement (DCA Reg. R-4905), Declaration of Covenants, and Bylaws (Articles VIII, X, XV, XVI), and New Jersey community association law current to July 2026. Draft for board discussion - not legal advice; counsel should review charters before adoption.